

Court No. - 39

Case :- WRIT - C No. - 3626 of 2021

Petitioner :- Ashik

Respondent :- The Executive Engineer, Pashchimanchal Vidyut Vitran Nigam Ltd. And 3 Others

Counsel for Petitioner :- Ashutosh

Counsel for Respondent :- C.S.C., Pranjal Mehrotra

Hon'ble Naheed Ara Moonis, J.

Hon'ble Dinesh Pathak, J.

Heard learned counsel for the petitioner, learned Standing Counsel appearing on behalf of respondent nos. 3 and 4 and Sri Pawan Kumar Singh, Advocate holding brief of Sri Pranjal Mehrotra, learned counsel appearing on behalf of respondent nos. 1 and 2.

This writ petition has been filed seeking following reliefs:-

"(i) Issue a writ of certiorari quashing the recovery citation dated 6.7.2019 issued by the respondent no. 02 against the petitioner regarding consumption of the electricity dues amount Rs. 45,637/-.

(ii) Issue a writ in the nature of mandamus directing the respondents not to adopt any coercive measures in pursuance of the aforesaid recovery citation."

Learned counsel appearing on behalf of Power Corporation i.e. respondent nos. 1 and 2 submits that initially a recovery citation of Rs. 1,30,144/- was issued against the petitioner on 13.2.2014 but the petitioner had failed to deposit the same and thereafter again, a demand notice of Rs. 45,637/- was issued by the respondent no. 2 on 6.7.2019 for the recovery of entire dues pending against the petitioner for which, he may approach before respondent no. 2 under Clause 6.5 of the U.P. Electricity Supply Code, 2005.

This fact has not been disputed by the learned counsel for the petitioner.

Considering the facts and circumstances of the case, but without entering into the merits of the case, this writ petition is ***disposed of*** directing the petitioner to move a fresh representation before respondent no.2 under Clause 6.5 of the U.P. Electricity Supply Code, 2005 within two weeks' from today ventilating his grievances and in case, such representation is moved, the same shall be considered and decided by respondent no.2 who shall pass an appropriate, reasoned and speaking order, as expeditiously as possible, preferably within a period of three

weeks' from the date of receipt of a copy of this order.

For a period of six weeks or till any final decision is taken on the said representation of the petitioner, whichever is earlier, no coercive action shall be taken against him pursuant to the impugned recovery citation.

Order Date :- 5.2.2021

Saurabh